

Execution Version

LIMITED LIABILITY COMPANY AGREEMENT
OF

BATAVIA LOGISTICS CENTER 1401, LLC
(a Texas limited liability company)

DATED AS OF
September 8, 2022

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**LIMITED LIABILITY COMPANY AGREEMENT
OF
BATAVIA LOGISTICS CENTER 1401, LLC**

THIS LIMITED LIABILITY COMPANY AGREEMENT (this “Agreement”) made to be effective as of September 8, 2022 (the “Effective Date”) is by and among KBC Advisors – Texas, LLC a Washington limited liability company (the “KBC Member”), the other Members listed on the signature pages hereto and each Person (if any), as shall become a Member of the Company after the date hereof in accordance with Section 14 of this Agreement (collectively referred to herein as the “Members”).

1. Definitions. As used in this Agreement, the following terms will have the following meanings when used herein with initial capital letters:

“Affiliate” means, with respect to any Person, any other Person who, directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with such Person. As used in this definition, “controls”, “controlled by”, or “under common control with” means the possession, directly or indirectly, through one or more intermediaries, of the power to direct or cause the direction of the management and policies of a Person, whether through voting securities, by contract or otherwise. One Person shall not be an Affiliate of a second Person solely by virtue of being a director of the second Person, and vice versa.

“Agreement” means this Limited Liability Company Agreement, as it may be amended from time to time.

“Available Cash” means, as of any applicable date, all cash funds of the Company on hand (other than Capital Contributions and the proceeds of loans made by the Members to the Company) after (a) payment of all Company costs and expenses (including, without limitation, the payment of all current payments) that are due and payable at such time, (b) provision for payment of all Company costs and expenses that are anticipated to become due and payable within ninety (90) days following the date on which Available Cash is determined and (c) provision for such reasonable reserves as are determined by the Manager or are otherwise required by applicable law.

“Capital Account” means that capital account maintained for each Member pursuant to Exhibit B.

“Capital Contribution” means, with respect to any Member, the amount of cash and the initial book value (as determined for Capital Account purposes) of any property or other asset (net of liabilities assumed by the Company resulting from such contribution, and liabilities to which that property or asset is subject), contributed or deemed contributed to the Company with respect to the interest in the Company held by the Member.

“Capital Needs” has the meaning set forth in Section 7.2(a).

“Company” means the limited liability company formed and governed by this Agreement.

“Company Representative” has the meaning set forth in Section 13.4(a).

“Confidential Information” has the meaning set forth in Section 17.12(a).

“Contribution Percentage” means, with respect to each Member, the percentage set forth opposite the Members’ names on Exhibit A under the column “Contribution Percentage”.

“Default Loan” has the meaning set forth in Section 7.2(b)(1).

“Disqualification Event” has the meaning set forth in Section 11.5.

“Distributable Cash in Respect of Capital Contributions” means any distributions received by the Company from the Project Partnership as a result of the Company’s actual or deemed contribution of capital to the Project Partnership less all operating expenses, capital costs then due and anticipated reserves allocable thereto, as determined by the Manager.

“Distributable Cash in Respect of Promotes and Fees” means, collectively, (a) any cash received by the Company as a result of any carried or promoted interest (i.e., a percentage distribution by the Project Partnership to a partner thereof that exceeds such partner’s actual or deemed percentage of the capital contributions made to the Project Partnership by all of its partners) under the Project Partnership Agreement, (b) any cash received by the Company as a result of any acquisition, development, asset management or other fee paid to the Company by the Project Partnership or any other Person in connection with the acquisition or management of the Project, less all operating expenses, capital costs then due and anticipated reserves allocable thereto, as determined by the Manager.

“Guaranty” means any payment guaranty, completion guaranty, non-recourse carve-out guaranty, environmental indemnity agreement or other guaranty or indemnity required in connection with any loan to the Company or the Project Partnership.

“Indemnified Persons” has the meaning set forth in Section 10.7.

“KBC Member” has the meaning set forth in the Preamble to this Agreement.

“Lending Member” has the meaning set forth in Section 7.2(b)(1).

“Manager” means Kelley John Hanson or any Person hereafter designated by the KBC Member to be the Manager hereunder, which Person may be a Member but is not required to be a Member.

“Member” has the meaning set forth in the Preamble to this Agreement.

“Liquidator” has the meaning set forth in Section 16.2(a).

“Material Act” has the meaning set forth in Section 10.2.

“Non-Contributing Member” has the meaning set forth in Section 7.2(b).

“Non-KBC Member” has the meaning set forth in Section 17.14.

“Percentage Interest” means, with respect to a Member at any time, a fraction, expressed as a percentage, the numerator of which is the amount of aggregate Capital Contributions made by such Member to the Company as of such date and the denominator of which is the amount of aggregate Capital Contributions made by all the Members to the Company as of such date, including Default Loan amounts treated as being contributed as a Capital Contribution pursuant to Section 7.2(b)(1).

“Permitted Transferee” has the meaning set forth in Section 14.

“Person” means an individual or an entity.

“Project” means a to-be-developed industrial project to be located on the Property.

“Project Partnership” means Velocis Batavia JV, LP, a Delaware limited partnership in which the Company is a limited partner.

“Project Partnership Agreement” means that certain Agreement of Limited Partnership of the Project Partnership, as same may be amended from time to time.

“Project Partnership Interest” means any limited partnership interest or other ownership interest in the Project Partnership that is owned by the Company from time to time.

“Property” shall have the meaning ascribed to it in the Project Partnership Agreement.

“SEC” means the Securities and Exchange Commission.

“Securities Act” means the Securities Act of 1933, as amended.

“TBOC” means the Texas Business Organizations Code, as it may be amended from time to time, and any successor to such act.

“Transfer” has the meaning set forth in Section 15.

2. Formation. The Company has been formed on or prior to the date hereof by the filing of a Certificate of Formation with the Secretary of State of the State of Texas.

3. Name. The name of the Company is “Batavia Logistics Center 1401, LLC.” The Manager may at any time change the name of the Company.

4. Principal Office; Registered Agent. The principal office of the Company is located at 2828 N. Harwood St., Suite 1900, Dallas TX 75201. The registered office of the Company is located at 211 E. 7th St., Suite 620, Austin, TX 78701-3218. Corporation Service Company dba CSC-Lawyers Incorporating Service Company is the initial registered agent of the Company. The Manager may change the principal or registered office or agent of the Company from time to time upon giving written notice of any such change to all of the other Members. The Manager shall provide the Members prompt notice of any items served upon the registered agent including copies thereof.

5. Purpose and Character of Business. The purpose of the Company shall be to acquire, own, administer, manage and ultimately sell or otherwise liquidate the Project Partnership Interest. It is agreed that each of the foregoing is an ordinary part of the Company's business.

6. Term. The Company shall continue until terminated pursuant to the provisions of Section 16.

7. Capital.

7.1. Initial Capital Contributions. On or as of the date of this Agreement, the Members have contributed cash to the capital of the Company in the amounts set forth opposite the Members' names on Exhibit A under the column "Initial Capital Contribution."

7.2. Additional Funds.

(a) Request for Additional Funds. If the Company needs capital to fund a capital call made by the Project Partnership, or if the Manager otherwise determines that the Company needs additional capital, including without limitation to acquire the interest of any other partner(s) in the Project Partnership (such amount referred to as "Capital Needs"), the Manager may request each Member to contribute to the capital of the Company that Member's *pro rata* share, based upon the relative Contribution Percentages of the Members, of the amount of any Capital Needs within ten (10) days after receiving a written request therefor from the Manager. No Member will have any personal liability pursuant hereto to contribute additional capital to the Company under this Section 7.2(a) at any time, and the remedies set forth in Section 7.2(b) shall be the exclusive remedies of the Company for any Member's failure to contribute additional capital to the Company.

(b) Failure to Contribute. If a Member (a "Non-Contributing Member") fails to make any portion of the additional Capital Contribution requested of the Member pursuant to Section 7.2(a) within ten (10) days after receipt of a written request therefor, the Manager may exercise any of the following remedies on behalf of the Company:

(1) Default Loan. Upon this election by the Manager, any Member other than the Non-Contributing Member, in its sole and absolute discretion, may elect to advance the Non-Contributing Member's additional Capital Contribution (a "Default Loan") on behalf of the Non-Contributing Member in an amount up to the amount of the additional Capital Contribution that the Non-Contributing Member failed to make (each such advancing Member a "Lending Member"). The Lending Members shall have the right to make such Default Loans in such proportion as they may agree, or if no agreement can be reached, in the proportion that their respective Contribution Percentages bear to the total Contribution Percentages of all of the applicable Lending Members. If the Lending Members elect to make such Default Loans on behalf of the Non-Contributing Member, then (a) the Default Loan shall be treated as a loan from the Lending Members to the Non-Contributing Member, shall bear interest at the rate of eighteen percent (18%) *per annum* (or, if less, the maximum rate permitted under applicable law), compounded annually, and shall be unsecured, (b) the Default Loan amount shall be treated as having been contributed by the Non-Contributing Member to the Company as a Capital Contribution, (c) all distributions otherwise payable to the Non-Contributing Member shall,

instead, be withheld by the Company and paid to the Lending Members (*pro rata* in accordance with the outstanding balances of the Default Loans held by each Lending Member) until the Default Loans and all accrued interest thereon are repaid in full and (d) all such withheld amounts shall be treated for all purposes as if they were actually distributed to the Non-Contributing Member who then utilized such amounts to repay the Default Loans.

(2) Borrow Funds. If the Capital Contributions from the Members pursuant to Section 7.2(a) do not satisfy the Company's Capital Needs, the Manager, on behalf of the Company, shall have the right to borrow funds sufficient for the Capital Needs from third parties on such terms and conditions, including rate of interest and maturity, as the Manager deems advisable; provided, however, that in lieu of borrowing from third parties, any one or more of the Members may, if acceptable to the Manager, from time to time make advances to the Company to meet such requirements. Any such advance made by a Member to the Company shall not be considered a Capital Contribution, but shall constitute a debt of the Company to the advancing Member, payable at such time and on such terms as the Manager and advancing Member shall agree; provided, however that if the advancing Member is the Manager (or a Member that controls, is controlled by, or under common control with the Manager), the debt shall be payable within thirty (30) days following written demand and bear interest on the unpaid principal balance thereof until paid beginning on the date of such advance at an interest rate and on such other terms as are approved by Members holding two-thirds (2/3) of the Percentage Interests held by all Members, such approval not to be unreasonably withheld, conditioned or delayed. Payments made to an advancing Member will be credited first to interest and then to principal. At the request of the Member making an advance, the Company will execute a promissory note evidencing this debt, together with such other loan documentation required by the advancing Member.

7.3. Capital Accounts. A Capital Account will be maintained for each Member in accordance with the provisions of Exhibit B.

7.4. Waiver of Right of Partition and Dissolution. No Member has any interest in specific Company property. The interests of all Members in the Company are, for all purposes, personal property and each of the Members irrevocably waives any right or power to cause the appointment of a receiver for the assets of the Company, to compel any sale of all or any portion of the assets of the Company pursuant to any applicable law or laws, or to file a complaint or to institute any proceeding at law or in equity to cause the termination or dissolution of the Company except as expressly provided for in this Agreement.

8. Allocations of Profits and Losses. Profit and Losses will be allocated in accordance with the provisions of Exhibit B.

9. Distributions.

9.1. Generally. Subject to Section 16.2, the Available Cash of the Company, as determined by the Manager, shall be allocated by the Manager between Distributable Cash in Respect of Capital Contributions and Distributable Cash in Respect of Promote and Fees and shall be distributed as follows:

(a) Distributable Cash in Respect of Capital Contributions shall be distributed to the Members *pro rata* in proportion to their respective Percentage Interests; and

(b) Distributable Cash in Respect of Promote and Fees shall be distributed to the KBC Member.

Each Member consents to the distributions provided for in this Section 9.1 and understands that because of differences between income and cash flow, distributions to a Member may constitute a return of capital or may be less than a Member's distributive share of Company income.

9.2. Withholding. Each Member hereby authorizes the Company to withhold from or pay on behalf of or with respect to such Member any amount of federal, state, local, or foreign taxes that the Manager determines the Company is required to withhold or pay with respect to any amount distributable or allocable to such Member pursuant to this Agreement, including, without limitation, any taxes required to be withheld or paid by the Company pursuant to Sections 1441, 1442, 1445 or 1446 of the Code. Any amount paid on behalf of or with respect to a Member shall constitute a loan by the Company to such Member, which loan shall be repaid by such Member within fifteen (15) days after notice from the Manager that such payment must be made unless (a) the Company withholds such payment from a distribution that would otherwise be made to the Member or (b) the Manager determines, in its sole and absolute discretion, that such payment may be satisfied out of the available funds of the Company which would, but for such payment, be distributed to the Member. Any amounts withheld pursuant to the foregoing clauses (a) or (b) shall be treated as having been distributed to such Member. Each Member hereby unconditionally and irrevocably grants to the Company a security interest in such Member's interest in the Company to secure such Member's obligation to pay to the Company any amounts required to be paid pursuant to this Section 9.2. If a Member fails to pay any amounts owed to the Company pursuant to this Section 9.2 when due, the Manager may, in its sole and absolute discretion, elect to make (or authorize another Member to make) the payment to the Company on behalf of such defaulting Member, and in such event shall be deemed to have loaned such amount to such defaulting Member and shall succeed to all rights and remedies of the Company as against such defaulting Member (including, without limitation, the right to receive distributions). Any amounts payable by a Member hereunder shall bear interest at an interest rate of eighteen percent (18%) per annum (or, if less, the maximum lawful rate under the laws of the State of Texas) from the date such amount is due (i.e., fifteen (15) days after demand) until such amount is paid in full. Each Member shall take such actions as the Company or the Manager shall request to perfect or enforce the security interest created hereunder

10. Management of Company.

10.1. Manager's Management Authority. The Company shall be managed exclusively by the Manager. Subject to Section 10.3, all decisions relating to the business and affairs of the Company consistent with the purpose and character of the business of the Company shall be made by the Manager. All such decisions or actions made or taken by the Manager under this Agreement will be binding upon all of the Members and the Company.

10.2. Specific Power and Authority of Manager. The sole, exclusive and absolute power and authority of the Manager to make all decisions with respect to the business and affairs of the Company and to take such action for and on behalf of the Company as it may deem necessary or appropriate to enable the Company to carry out its purposes as set forth herein, shall include, without limitation, the sole, exclusive, absolute, full and complete right, power and authority (each of the following a “Material Act”):

(a) to grant or withhold any consents or approvals under the Project Partnership Agreement;

(b) to make any elections under the Project Partnership Agreement or with respect to the Project Partnership, including an election to sell the Project Partnership Interest to the other partners therein or to acquire the other partners’ interests in the Project Partnership;

(c) to incur new indebtedness or refinance existing indebtedness for or on behalf of the Company, to execute and to deliver for and on behalf of the Company any documents necessary for the amendment or modification of any loan and to convey, mortgage, pledge, hypothecate, for and on behalf of the Company all or any part of the Company’s assets (including the Project Partnership Interest), and to convey, assign or transfer any of the Company’s assets (including the Project Partnership Interest), in full or partial satisfaction of any obligation secured by any such conveyance, mortgage, pledge or hypothecation;

(d) to institute, prosecute, defend and settle any legal, arbitration or administrative actions or proceedings on behalf of or against the Company and to settle or compromise any claim or dispute that is not the subject of any legal, arbitration or administrative action or proceeding;

(e) to pay or cause to be paid any debts and other obligations of the Company, including amounts due under the any loan;

(f) to approve any capital expenditures;

(g) to initiate capital calls pursuant to Section 7.2;

(h) to wind-up and terminate the Company; and

(i) file, cause, agree to or permit an event of bankruptcy of the Company.

10.3. Limitations on Powers and Authority of Manager. Notwithstanding the powers of the Manager set forth in Section 10.1 (as shown by example in Section 10.2), without the prior approval by Members holding two-thirds (2/3) of the Percentage Interests held by all Members, the Manager shall not have the right or power to do or to cause the Company to do any of the following:

(a) amend the Project Partnership Agreement, if such amendment would materially and adversely affect a Member’s rights, duties or interests hereunder;

(b) acquire any asset other than the Project Partnership Interest or to acquire other partners' interests in the Project Partnership, other than in the ordinary course of business;

(c) perform any act in contravention of this Agreement or the purpose of the Company, as indicated in Section 5;

(d) enter into or consummate any transaction or arrangement with the KBC Member or any of its Affiliates other than as specifically provided for in this Agreement;

(e) cause or permit the Company to issue any additional equity interests or enter into any merger, interest exchange or similar transaction; and

(f) amend this Agreement or the certificate of formation of the Company, except as provided in Section 17.2.

10.4. Obligations of Members. The Members acknowledge and agree that neither the Manager nor any Member shall have any duty (fiduciary or otherwise) to (a) any other Member, except those duties, if any, that arise solely between members of a limited liability company under applicable law and cannot be waived under applicable law and/or (b) any Affiliate of any Member. The Members expressly acknowledge that (1) the Manager is acting on behalf of the Company and the Members, (2) except as expressly provided herein, the Manager is under no obligation to consider the separate interests of the Members alone in deciding whether to cause the Company to take (or decline to take) any actions, and (3) the Manager shall not be liable for damages to the Company or any Member for losses sustained, liabilities incurred, or benefits not derived by Members in connection with such decisions, so long as the Manager has acted without gross negligence, willful misconduct or fraud and in compliance with this Agreement.

10.5. Other Members. The Members, in their capacities as Members, may not act for or bind the Company and may not participate in the general management, conduct or control of the Company's business or affairs. Nothing contained in this Section 10.5 will prohibit any Member from acting as the Manager or as an officer, director, employee, agent or other representative of the Manager.

10.6. Expenses.

(a) Each of the Members shall bear and be charged with their own respective general overhead expenses, including salaries, bonuses and benefits, rent, office furniture, fixtures and computer equipment.

(b) The costs and expenses of the Company and, to the extent fairly allocable to the Company, of the Manager and its Affiliates, will be borne by and charged to the Company.

(c) For the avoidance of doubt, the legal and other costs and expenses of the parties in connection with the negotiation of this Agreement and any other agreement whereby the KBC Member or its Affiliate or the Company on the one hand, is adverse to another Member or its Affiliate, on the other hand, shall be borne by the respective parties that incur such expenses.

10.7. Liability of Members. Except as set forth in Section 10.4, the Members and Manager shall not be liable or accountable, in damages or otherwise, to the Company or to any other Member for any error of judgment or for any mistake of fact or law or for anything which they may do or refrain from doing hereafter in connection with the business and affairs of the Company, except in the case of gross negligence, willful misconduct, fraud or breach of or default under this Agreement. The Company shall indemnify the Members and Manager, their respective Affiliates and the employees, representatives and agents of the foregoing, any Person serving as the Company Representative, the designee or agent of the Company Representative or in any similar role, and any other Person serving at the Company's request as an employee or agent of the Company (the "Indemnified Persons") from all loss, cost, damage and expense (including, without limitation, reasonable fees and expenses of attorneys) or liability to third parties incurred by reason of anything an Indemnified Person has done or refrained from doing in connection with the business and affairs of the Company (INCLUDING ANY LOSS, COST, DAMAGE, EXPENSE, OR LIABILITY CAUSED BY OR ATTRIBUTABLE TO THE ORDINARY NEGLIGENCE OF THE INDEMNIFIED PERSON AND FOR ANY ACTION FOR WHICH THE INDEMNIFIED PERSON MAY INCUR STRICT LIABILITY), and including any cost, liability or obligation incurred by an Indemnified Person in respect of any guaranty, indemnity or similar arrangement entered into by such Person in respect of any indebtedness of the Company or its subsidiaries, except in the case of the Indemnified Person's gross negligence, willful misconduct, fraud or breach of or default under this Agreement. The Company shall advance, before the final disposition of any court or administrative proceeding, expenses incurred by an Indemnified Person (a) who was, is, or is threatened to be made a named defendant or respondent in a court or administrative proceeding or (b) in connection with that Person's appearance as a witness or other participation in a court or administrative proceeding involving or affecting the Company at a time when that Person is not a named defendant or respondent in the court or administrative proceeding. The Company may purchase and maintain insurance or another arrangement on behalf of any Person who is or was an employee or agent of the Company against any liability asserted against that Person or incurred by the Person in that capacity or arising out of the Person's status in that capacity. Any indemnification of or advance of expenses to a Member in accordance with this Section 10.7 shall be promptly reported to the Members, but no later than six (6) months after the date the indemnification occurs. The provisions of this Section 10.7 shall be enforceable to the fullest extent permitted by the TBOC, as it may be hereafter amended (but, in the case of any amendment, only to the extent that such amendment permits broader indemnification rights than the TBOC allowed before such amendment). To the fullest extent permitted by applicable law, if any portion of this Section 10.7 shall be invalidated on any ground by any court of competent jurisdiction, then the Company shall nevertheless indemnify each Indemnified Person, to the fullest extent permitted by any applicable portion of this Section 10.7 that shall not have been invalidated.

10.8. Creditors Not Benefited. Nothing contained herein, including, without limitation, Sections 7.2, 10.3, 10.7, or 16, is intended or will be deemed to benefit any creditor of the Company, and no creditor of the Company will be entitled to require any Member to solicit or accept any loan or additional capital contribution for the Company or to enforce any right which the Company or any Member may have against any Member under this Agreement or otherwise.

10.9. Other Activities of Members and Agreements with Related Parties. Subject to the provisions of any other agreements binding on the parties, each Member, in his individual

capacity or otherwise, shall be free to engage in, to conduct, or to participate in any business or activity whatsoever, including, without limitation, the acquisition, development, management, and exploitation of real property, without any accountability, liability, or obligation whatsoever to the Company or to any other Member, even if such business or activity competes with or is enhanced by the business of the Company. Further, the Manager, in the exercise of its power and authority under this Agreement, but subject to Section 10.3, may contract and otherwise deal with or otherwise obligate the Company to entities in which any one or more of the Members may have an ownership or other financial interest.

10.10. Guaranties. No Member or any Affiliate thereof will be required or expected to provide a Guaranty in connection with any indebtedness of the Company or the Project Partnership.

11. Representations of the Members. Each Member and Permitted Transferee hereby severally (and not jointly) represents and warrants to, and agrees with, the Company and each other Member as of the date of this Agreement (or, with respect to a Permitted Transferee, as of the date of the admission of such Permitted Transferee as a Member) as follows:

11.1. Experience/Accredited Investor. (i) Such Person is an “Accredited Investor” (as such term is defined pursuant to Regulation D promulgated under the Securities Act), (ii) such Person is aware that an investment in the Company involves substantial risk and (iii) such Person’s financial condition and investments are such that it is in a financial position to hold its interest in the Company for an indefinite period of time and to bear the economic risk of and withstand a complete loss of its investment.

11.2. Investment. Such Person is acquiring its interest in the Company for investment for such Person’s own account, not as a nominee or agent, and not with the view to, or for resale in connection with, any distribution thereof and, anything herein contained to the contrary notwithstanding, will not sell or dispose of its interest in the Company or any interest therein except in compliance with applicable Federal and state securities laws and the terms hereof. Such Person understands that its interest in the Company has not been, and will not be, registered under the Securities Act or the securities laws of any state by reason of exemptions from the registration provisions of the Securities Act and such laws which may depend upon, among other things, the *bona fide* nature of the investment intent and the accuracy of such Person’s representations as expressed herein.

11.3. No Public Market. Such Person acknowledges that the interest in the Company must be held indefinitely unless subsequently registered under the Securities Act or an exemption from such registration is available. Such Person understands that no public market now exists for any of the securities issued by the Company and that it is not likely that a public market will ever exist for any such securities.

11.4. Access to Data; Non-Reliance. Such Person acknowledges that the interest in the Company was not offered to such Person by means of any general solicitation, publicly disseminated advertisement or sales literature. Such Person has had an opportunity to discuss the business, management and financial affairs of the Company with appropriate Persons, and to ask questions of such Persons, which questions were answered to its satisfaction. SUCH PERSON

ACKNOWLEDGES THAT IT HAS HAD AN OPPORTUNITY TO CONDUCT ITS OWN INDEPENDENT DUE DILIGENCE INVESTIGATION OF THE COMPANY AND PARTNERSHIP. SUCH PERSON IS NOT RELYING, AND HEREBY EXPRESSLY DISCLAIMS ANY SUCH RELIANCE, UPON ANY REPRESENTATION OR STATEMENT OF ANY OTHER PERSON IN CONNECTION WITH ITS INVESTMENT IN THE COMPANY OR PARTNERSHIP AND EXECUTION OF THIS AGREEMENT, EXCEPT AS EXPRESSLY PROVIDED HEREIN.

11.5. “Bad Actor”. None of the “Bad Actor” disqualifying events described in Rule 506(d)(1)(i) to (viii) promulgated under the Securities Act (each, a “Disqualification Event”), including without limitation, (i) criminal convictions occurring in the last ten (10) years or court injunctions or restraining orders issued in the last five (5) years in connection with the purchase or sale of a security or a false filing with the SEC, (ii) currently effective SEC disciplinary orders relating to brokers, dealers, municipal securities dealers, investment companies and investment advisors, (iii) SEC cease-and-desist orders arising out of any knowing anti-fraud violation or violation of Section 5 of the Securities Act, (iv) currently effective suspension or expulsion from membership in a self-regulatory organization, (v) SEC stop orders and orders suspending an exemption under Regulation A of the Securities Act issued in the last five (5) years and (vi) final orders from state securities, insurance, banking, savings associations or credit union regulators or federal banking agencies, the Commodity Futures Trading Commission or the National Credit Union Administration barring association with a regulated entity, engagement in the business of securities, insurance or banking, engagement in savings association or credit union activities or, if issued in the last ten (10) years, which are based on fraudulent, manipulative or deceptive conduct, is applicable to such Person or any of such Person’s Rule 506(d) Related Parties, except, if applicable, for a Disqualification Event as to which Rule 506(d)(2)(ii) or (iii) or (d)(3) of the Securities Act is applicable. For purposes of this Section 11.5, a “Rule 506(d) Related Party” is, with respect to such Person, a Person that is a beneficial owner of such Person’s securities for purposes of Rule 506(d) of the Securities Act.

11.6. Authorization. This Agreement, when executed and delivered by such Person, will constitute a valid and legally binding obligation of such Person enforceable against such Person in accordance with its terms. Such Person, if not a natural person, has full corporate, partnership or limited liability company power and authority, as the case may be, to enter into and to perform its obligations hereunder.

11.7. Investor Qualification. Such Person (i) has adequate means of providing for his, her or its current needs, (ii) has no current need for liquidity in his, her or its investment in the Company and (iii) is able to bear the economic risk of losing his, her or its entire investment in the Company.

11.8. Treatment as Tax Company. Such Person acknowledges that the Company is intended to be treated as a partnership for federal tax purposes (but for no other purpose).

11.9. Review of Agreement; Counsel. Such Person has carefully read and understands each and every provision of this Agreement and each related and ancillary document and agreement, including the documents and agreements referenced herein. As further set forth in Section 17.14, such Person understands that legal counsel to the Company, the Manager and the

KBC Member (as well as legal counsel to the other Members, unless otherwise agreed by such legal counsel to the other Members) do not represent such Person or any other investor in Company, and no independent counsel has been retained by the Company or the other Members to represent such Person or any other investor in the Company. Such Person has been encouraged to consult its own investment advisors and legal counsel in connection with its investment in the Company and review of this Agreement. Such Person has evaluated for itself the merits of such investment, is qualified to make such investment decision and, to the extent it deems necessary, has consulted its own investment advisors and legal counsel regarding its investment in the Company, and such Person has not solicited and has not received from the Company, the Manager, any Member, any of their respective Affiliates, or any officer, director, shareholder, member, manager, partner, agent or representative of any of the foregoing, any evaluation or other investment or legal advice relating to the Company or an investment therein.

12. Banking. The funds of the Company shall be kept in such accounts as may be designated by the Manager. All withdrawals therefrom shall be made on such signature or signatures as shall be designated by the Manager.

13. Accounting; Reporting; Tax Returns.

13.1. Fiscal Year. The fiscal year of the Company shall end on the last day of December of each year, unless another fiscal year end is selected by the Manager. The taxable year of the Company shall be the calendar year unless a different year is required by the Code. The Company shall use the accrual method of accounting for federal income tax purposes.

13.2. Books of Account; Reporting; Tax Returns. The Company books of account shall be maintained by the Manager at the principal office designated in Section 4 or at such other locations and by such person or persons as may be designated by the Manager. The Company shall pay the reasonable third party expense of maintaining its books of account. Each Member shall have, during reasonable business hours and upon reasonable notice, access to the books of the Company and in addition, at his expense, shall have the right to copy such books and to require an audit of the Company's books of account. The Manager will prepare at the expense of the Company and furnish to each of the Members within one hundred twenty (120) calendar days after the close of each fiscal year of the Company or otherwise as soon as is commercially practicable, a balance sheet of the Company dated as of the end of the fiscal year and a related statement of income and expense for such fiscal year. The Manager shall cause to be furnished to each Member, at the expense of the Company, any reports on the operations of the Property that are provided to the Company by the Project Partnership. In addition, as promptly as practical using commercially reasonable efforts after the end of each fiscal year, the Manager will prepare and deliver to each Member a report, inclusive of a Form K-1 and the Company draft tax return, setting forth in sufficient detail all such information and data as will enable the Company and each Member to timely prepare its federal, state and local income tax returns in accordance with the laws, rules and regulations then prevailing. If requested by the Manager, the annual financial reports of the Company will be audited by an auditor of national standing at the expense of the Company.

13.3. Method of Accounting. The Company books of account shall be maintained, and its income, gains, losses, deductions and credits shall be accounted for, in accordance with IFRS.

13.4. Company Audit Rules.

(a) The Manager is the initial “partnership representative” of the Company pursuant to Section 6223(a) of the Code (the “Company Representative”). Any Person that the Company Representative designates to interact with the Internal Revenue Service shall be treated as, and subject to the requirements and obligations of, the Company Representative for purposes of this Section 13.4. Any Person acting as the Company Representative, including any Person designated to interact with the Internal Revenue Service, shall be an Indemnified Person for purposes of this Agreement. In the event the Company Representative resigns or is removed by the Members holding a majority of the Percentage Interests held by all Members, a new Company Representative shall be appointed by the Members holding a majority of the Percentage Interests held by all Members.

(b) The Company Representative shall be entitled to extend the statute of limitations, settle any tax audit, proposed adjustment, or other proceeding on behalf of the Company, or make payments to any taxing authority in connection with a settlement of any audit, proposed adjustment, or other proceeding as it so determines. The Company Representative is authorized and required to represent the Company (at the Company’s expense) in connection with all examinations of the Company’s affairs by any federal, state, local or foreign taxing authority, including resulting administrative and judicial proceedings, and to expend Company funds for professional services and costs associated therewith. The Company Representative may make any elections permitted with respect to Sections 6221 through 6241 of the Code, including, if permitted under Section 6221(b), cause the Company to elect out of the partnership audit rules.

(c) In the event the Company is liable for any imputed underpayment with respect to items of Company income, gain, loss, deduction or credit, the Company Representative shall be entitled to cause the Company to make the election under Section 6226 of the Code in the manner provided by the Internal Revenue Service within forty-five (45) days after the date of the notice of a final partnership adjustment. Upon making such election, the Company Representative shall engage a certified public accountant and/or tax attorney on behalf of the Company to assist the Company Representative in determining in a reasonable manner each Member’s share of the adjusted items as set forth in the notice of final partnership adjustment, and each such Member shall take such adjustment into account as required under Section 6226(b) of the Code and shall be liable for any related income tax, interest, penalty, or additional amount. If an election under Section 6226 of the Code is not made or such election is ineffective, and the Company is held directly liable for any additional income tax, interest, penalty or additional amount under the Code or other applicable law as a result of an adjustment to any of the Company’s federal, state or local income tax returns, each Member shall be required, upon thirty (30) days’ written demand from the Company Representative, to pay the Company its share (as reasonably determined by a certified public accountant or tax attorney engaged by the Company Representative on behalf of the Company) of any additional tax, interest, penalty and additional amount due. In connection with a determination of each Member’s share of any such additional tax, interest, penalty and additional amount, the Company Representative shall use commercially reasonable efforts to take

into account the tax status of each Member (and its direct and indirect equity owners) under U.S. federal, state and local income tax laws. For purposes of this Section 13.4, the Company Representative shall use commercially reasonable efforts to obtain a modification of any imputed underpayment pursuant to Section 6225(c) of the Code, including with respect to any entity in which the Company owns an equity interest that has an imputed underpayment, and shall apply any such modification to the Members whose tax status (or the tax status of the direct or indirect partners of the Members) resulted in such modification.

(d) The Manager shall charge interest at an interest rate of eighteen percent (18%) per annum (or otherwise, the maximum rate permitted under applicable law) for underpayments of tax with respect to any amounts required to be paid to the Company by a Member pursuant to this Section 13.4 if not otherwise timely paid. Each Member will provide such cooperation and assistance, including executing and filing forms or other statements and providing information about such Member, as is reasonably requested by the Company Representative to enable the Company to satisfy any applicable tax reporting or compliance requirements, to make any tax election or to qualify for an exception from or reduced rate of tax or other tax benefit or be relieved of liability for any tax regardless of whether such requirement, tax benefit, or tax liability existed on the date such Member was admitted to the Company. If a Member fails to provide any such forms, statements, or other information requested by the Company Representative, such Member will be required to indemnify and pay to the Company its share of any tax deficiency paid or payable by the Company that is due as a result of such failure (as reasonably determined by the Company Representative) and any additional costs associated therewith. Any deficiency for taxes imposed on any Member (including penalties, additions to tax or interest imposed with respect to such taxes, and any taxes imposed pursuant to Code Section 6226) shall be paid by such Member and if required to be paid (and actually paid) by the Company, will be recoverable from such Member including, among other methods, by withholding distributions that might otherwise be made to such Member pursuant to this Agreement.

(e) Any amounts paid to the Company by a Member pursuant to this Section 13.4 shall not be treated as a Capital Contribution for purposes of this Agreement. Any amounts paid by the Company on behalf of a Member that are not otherwise reimbursed by a Member shall constitute a distribution to such Member. The Company shall seek reimbursement for any payment made by the Company out of Company funds on behalf of any Member pursuant to this Section 13.4 unless otherwise agreed by the Manager. The Manager may cause such allocations to be made among the Members as necessary to reflect any items of income or loss associated with the payment of a Company liability as set forth in this Section 13.4.

(f) Each Member shall remain bound by the provisions and obligations of this Section 13.4, which shall survive a Member's ceasing to be a Member of the Company and/or the termination, dissolution, liquidation and winding up of the Company. For purposes of this Section 13.4, the use of the terms "Member" or "Members" shall include former Members.

14. Admission of Members. No Person shall be admitted to the Company as a substitute or additional Member without the prior written consent of the Manager (which consent may be withheld in the sole and absolute discretion of the Manager). Any Person eligible to be admitted to the Company as a substitute or additional Member upon the consent of the Manager or pursuant to clauses (i) or (ii) of Section 15 is hereinafter referred to as a "Permitted Transferee."

Any person admitted to the Company as a Member shall be subject to the terms and provisions of this Agreement and shall promptly, upon demand of the Manager, execute and deliver to the Company such documents as may be necessary or appropriate, in the opinion of counsel for the Company, to reflect such person's admission to the Company as a Member and to be bound by the terms of this Agreement.

15. Transfer of Membership Interests. Except as otherwise stated in this Section 15, no Member may sell, assign, transfer, mortgage, pledge, encumber, hypothecate, or otherwise dispose of, whether voluntarily, by operation of law or otherwise (herein collectively referred to as a "Transfer") all or any part of the Member's interest in the Company without the prior consent of the Manager (which consent may be given or withheld in the Manager's sole and absolute discretion). Notwithstanding the foregoing, without the consent of the Manager, a Member may Transfer all or any part of its (i) direct interest in the Company to an Affiliate of such Member, so long as such transferee remains an Affiliate of such Member or (ii) indirect interest in the Company, so long as such Transfer would not result in a change of control of such Member, a Transfer of the majority of the indirect interests of such Member, or the violation of the Project Partnership Agreement or any loan documents to which the Company is a party, in each case, without such Transfer being deemed to be a violation of this Section 15.

16. Liquidation and Termination of Company.

16.1. Winding-up Events. The Company shall not be wound up upon the death or incapacity of any Member, but the Company shall be wound-up and terminated in the manner hereinafter provided upon the happening of any of the following events:

(a) Manager Election. The election to wind up the Company by the Manager in its sole discretion;

(b) Disposition of Property. Upon the election of any Member following the disposition of all or substantially all of the Company's property;

(c) Bankruptcy. The entry of a final judgment, order or decree of a court of competent jurisdiction adjudicating the Company to be a bankrupt, and the expiration without appeal of the period, if any, allowed by applicable law in which to appeal therefrom; or

16.2. Method of Liquidation.

(a) Generally. Upon the happening of any of the events specified in Section 16.1, the Manager or, in the event dissolution results from the withdrawal or retirement from the Company of the Manager, any liquidating trustee elected by Members holding no less than a majority of the Percentage Interests held by Members (either of the Manager or liquidating trustee being the "Liquidator"), shall immediately commence to wind up the Company's affairs and shall liquidate the assets of the Company as promptly as possible to the extent necessary to satisfy the debts and obligations of the Company. Until final distribution, the Liquidator shall continue to operate the Company properties with all of the power and authority of the Manager hereunder. The steps to be accomplished by the Liquidator are as follows:

(1) Pay Debts. The Liquidator shall pay all of the debts and liabilities

of the Company or otherwise make adequate provision therefor (including, without limitation, the establishment of a cash escrow fund for contingent liabilities in such amount and for such term as the Liquidator may reasonably determine); and

(2) Distribute Assets. All remaining assets of the Company shall be distributed, in cash or in kind, to the Members in accordance with Section 9 of this Agreement.

(b) Distributions in Kind. If the Company makes distributions in kind of Company property which secures indebtedness, each of the Members receiving the distribution of property subject to the indebtedness will be severally liable (as among each other, but not for the benefit of others) for his proportionate share of the indebtedness, provided that no Member will be deemed to have assumed any liability on any indebtedness secured by property distributed to any Member for which the Member is not liable under the terms of the instrument creating the indebtedness, and provided that the liability of each Member to other Members for indebtedness secured by property distributed to him will be limited to the value of his interest in the property. Indebtedness secured by property distributed to Members in kind need not be discharged out of the proceeds of liquidation of the Company.

16.3. Date of Termination. The Company shall be terminated when all of the cash or property available for application and distribution under Section 16.2 above shall have been applied and distributed in accordance with such Section 16.2. The establishment of any reserves in accordance with the provisions of Section 16.2 shall not have the effect of extending the term of the Company, but any such reserve shall be distributed in the manner provided in Section 16.2 upon expiration of the need for the reserve.

17. Miscellaneous.

17.1. Notices. Any notice, request, consent, payment, demand or communication required or permitted to be given by any provision of this Agreement shall be in writing and, if properly addressed to the recipient, shall be deemed given (a) on the date of actual receipt if delivered personally to the recipient (or an officer, manager, general partner or other similar representative of the recipient); (b) three (3) business days after mailing if mailed by first class mail (or if sent to or from outside the United States, by airmail), postage prepaid; (c) on the date of transmission if transmitted on a business day prior to 5:00 p.m. Dallas, Texas time (or the business day following transmission if transmitted after 5:00 p.m. Dallas, Texas time or on a day other than a business day) if sent by e-mail; *provided* that an e-mail shall not be deemed given to the recipient if the sender receives an automatic “bounceback” reply indicating that the e-mail was undeliverable (which, for the avoidance of doubt, shall not include an auto reply that the recipient is “out-of-office” for a specified or unspecified period of time or for a specified or unspecified reason); or (d) one (1) business day after being sent by a reputable overnight courier service, overnight delivery requested. All notices, requests, consents, payments, demands or other communications to be sent to a Member or the Company must be sent to or made at the address or e-mail for such Person set forth on Exhibit A, or to such other address or e-mail as the Person to whom notice is intended to be given may specify by notice to the Members and the Company (with notices to the Company being sent to the address of the KBC Member).

17.2. Amendments; Waivers. Except for amendments to reflect permitted Transfers, admissions of Permitted Transferees as Members and corresponding adjustments to Percentage Interests, no amendment of this Agreement will be valid or binding upon the Members unless approved by Members holding two-thirds (2/3) of the Percentage Interests held by all Members, and no waiver of any term of this Agreement will be effective unless approved by approved by Members holding two-thirds (2/3) of the Percentage Interests held by all Members. Notwithstanding the foregoing, (1) no amendment or waiver that would affect the rights of a Member specifically granted such rights by name shall be amended without that Member's written consent, and (2) no amendment or waiver may adversely affect any Member in a manner that is different from other similarly situated Members without the written consent of the adversely affected Member.

17.3. Binding Effect. This Agreement will inure to the benefit of and will be binding upon the Members, their legal representatives, Permitted Transferees, heirs, administrators, and other successors and assigns.

17.4. Duplicate Originals. Any number of counterparts of this Agreement may be executed. Each counterpart will be deemed to be an original instrument and all counterparts taken together will constitute one agreement.

17.5. Construction. The titles of the sections in this Agreement have been inserted as a matter of convenience of reference only and do not affect the meaning or construction of any of the provisions in this Agreement.

17.6. Governing Law; Jurisdiction; Waiver of Jury Trial.

(a) THIS AGREEMENT IS TO BE GOVERNED BY THE LAWS OF THE STATE OF TEXAS, WITHOUT GIVING EFFECT TO THE PRINCIPLES OF CONFLICT OF LAWS.

(b) Each Member hereby submits to the exclusive jurisdiction of any state or federal court sitting in Cook County, Illinois in any action or proceeding arising out of or relating to this Agreement or the transactions contemplated herein. To the maximum extent permitted by applicable law, any final judgment against a Member in any proceedings brought in the United States will be conclusive and binding upon such Member and may be enforced against such Member in the courts of any other jurisdiction. Each Member's obligation under this Section 17.6(b) will survive the dissolution, liquidation and winding up of the Company.

(c) BECAUSE DISPUTES ARISING IN CONNECTION WITH COMPLEX TRANSACTIONS ARE MOST QUICKLY AND ECONOMICALLY RESOLVED BY AN EXPERIENCED AND EXPERT PERSON AND THE PARTIES WISH APPLICABLE STATE AND FEDERAL LAWS TO APPLY (RATHER THAN ARBITRATION RULES), THE PARTIES DESIRE THAT THEIR DISPUTES BE RESOLVED BY A JUDGE APPLYING SUCH APPLICABLE LAWS. THEREFORE, TO ACHIEVE THE BEST COMBINATION OF THE BENEFITS OF THE JUDICIAL SYSTEM AND OF ARBITRATION, EACH PARTY TO THIS AGREEMENT HEREBY WAIVES ALL RIGHTS TO TRIAL BY JURY IN ANY ACTION, SUIT, OR PROCEEDING BROUGHT TO RESOLVE ANY DISPUTE BETWEEN

OR AMONG ANY OF THE PARTIES HERETO, WHETHER ARISING IN CONTRACT, TORT, OR OTHERWISE, ARISING OUT OF, CONNECTED WITH, RELATED OR INCIDENTAL TO THIS AGREEMENT, THE TRANSACTIONS CONTEMPLATED HEREBY AND/OR THE RELATIONSHIP ESTABLISHED AMONG THE PARTIES HEREUNDER. EACH OF THE PARTIES TO THIS AGREEMENT HEREBY AGREES AND CONSENTS THAT ANY SUCH CLAIM, DEMAND, ACTION, OR CAUSE OF ACTION SHALL BE DECIDED BY COURT TRIAL WITHOUT A JURY AND THAT THE PARTIES TO THIS AGREEMENT MAY FILE AN ORIGINAL COUNTERPART OF A COPY OF THIS AGREEMENT WITH ANY COURT AS WRITTEN EVIDENCE OF THE CONSENT OF THE PARTIES HERETO TO THE WAIVER OF THEIR RIGHT TO TRIAL BY JURY.

17.7. Other Instruments. The Members will execute other agreements and instruments that the Manager determines to be appropriate to carry out this Agreement or any provision of this Agreement.

17.8. Gender, Etc. Words used in this Agreement in any gender will be deemed to include the masculine, feminine and neuter gender; singular words will include the plural and plural words will include the singular; the word “or” will be disjunctive but not necessarily exclusive, unless the context otherwise requires; and the words “will” or “shall” indicate express determination and not simple futurity.

17.9. Prior Agreements Superseded. This Agreement supersedes any prior understandings or written or oral agreements between the parties respecting the within subject matter and contains the entire understanding between the parties with respect thereto.

17.10. Severability. If any provision of this Agreement is held to be illegal, invalid or unenforceable under present or future laws during the term hereof, that provision shall be fully severable, this Agreement shall be construed and enforced as if that illegal, invalid or unenforceable provision had never comprised a part hereof, and the remaining provisions hereof shall remain in full force and effect and shall not be affected by the illegal, invalid or unenforceable provision or by its severance herefrom. Furthermore, in lieu of such illegal, invalid or unenforceable provision, there shall be added automatically as a part of this Agreement, a legal, valid and enforceable provision as similar to the illegal, invalid and unenforceable provision as may be possible.

17.11. Counterparts. This Agreement may be executed in counterparts, all of which together shall constitute one agreement binding on all the parties hereto, notwithstanding that all such parties are not signatories to the original or the same counterpart. This Agreement and any signed agreement or instrument entered into in connection with this Agreement, and any amendments hereto or thereto, to the extent delivered by means of a facsimile machine or electronic mail (any such delivery, an “Electronic Delivery”), shall be treated in all manner and respects as an original agreement or instrument and shall be considered to have the same binding legal effect as if it were the original signed version thereof delivered in person. No party hereto or to any such agreement or instrument shall raise the use of Electronic Delivery to deliver a signature or the fact that any signature or agreement or instrument was transmitted or communicated through the use of Electronic Delivery as a defense to the formation of a contract,

and each such party forever waives any such defense, except to the extent such defense relates to lack of authenticity.

17.12. Confidentiality.

(a) Confidential Information. The terms of this Agreement, the identity of any person with whom the Company may be holding discussions with respect to any investment, acquisition, disposition or other transaction, and all other business, financial or other information relating directly to the conduct of the business and affairs of the Company or the relative or absolute rights or interests of any of the Members (collectively, the “Confidential Information”) that has not been publicly disclosed pursuant to authorization by the Manager is confidential and proprietary information of the Company, the disclosure of which would cause irreparable harm to the Company and the Members. Accordingly, each Member represents that it has not and agrees that it will not and will direct its shareholders, partners, directors, officers, agents, advisors and Affiliates not to, disclose to any Person any Confidential Information or confirm any statement made by third Persons regarding Confidential Information until the Company has publicly disclosed the Confidential Information pursuant to authorization by the Manager and has notified each Member that it has done so; provided, however, any Member (or its Affiliates) may disclose such Confidential Information (1) to any of its or its Affiliates directors, officers, investment advisors, auditors, employees, Members, members or shareholders who have a need to know such information and for whom such Member shall be responsible, (2) if required by law (it being specifically understood and agreed that anything set forth in a registration statement or any other document filed pursuant to law will be deemed required by law) or (3) necessary for it to perform any of its duties or obligations hereunder or in any related agreement to which it is a party covering any Company property or the Property.

(b) No Disclosure. Each Member agrees not to disclose any Confidential Information to any Person (other than a Person set forth in the proviso of Section 17.12(a) who agrees to maintain all Confidential Information in strict confidence or a judge, magistrate or referee in any action, suit or proceeding relating to or arising out of this Agreement or otherwise), and to keep confidential all documents (including, without limitation, responses to discovery requests) containing any Confidential Information. Each Member hereby consents in advance to any motion for any protective order brought by any other Member represented as being intended by the movant to implement the purposes of this Section 17.12 provided that, if a Member receives a request to disclose any Confidential Information under the terms of a valid and effective order issued by a court or governmental agency and the order was not sought by or on behalf of or consented to by such Member, then such Member may disclose the Confidential Information to the extent required if the Member as promptly as practicable notifies each of the other Members of the existence, terms and circumstances of the order, consults in good faith with each of the other Members on the advisability of taking legally available steps to resist or to narrow the order, and if disclosure of the Confidential Information is required, exercises its best efforts to obtain a protective order or other reliable assurance that confidential treatment will be accorded to the portion of the disclosed Confidential Information that any other Member designates. The cost (including, without limitation, attorneys’ fees and expenses) of obtaining a protective order covering Confidential Information designated by such other Member will be borne by the Company.

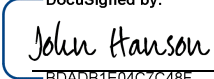
17.13. Non-Disparagement. Commencing on the Effective Date and continuing until the date that is two (2) years after the Company, directly or indirectly, no longer owns any interest in any portion of the Property, each Member (regardless of whether such Member continues to own a membership interest in the Company) shall promote the best interest of the Company and the Property and no Member or any Affiliate thereof shall, directly or indirectly, in any capacity or manner, make, express, transmit speak, write, verbalize or otherwise communicate in any way (or cause, further, assist, solicit, encourage, support or participate in any of the foregoing), any remark, comment, message, information, declaration, communication or other statement of any kind, whether verbal, in writing, electronically transferred or otherwise, that might reasonably be construed to be derogatory or critical of, or negative toward, or malign, harm, disparage, defame or damage the reputation or good name of, the Property, the Company, the Manager, any Member, or any of their members, managers, officers, directors, employees, agents or representatives. Notwithstanding the foregoing, nothing in this Section 17.13 or elsewhere in this Agreement shall prohibit any Member from (a) making any statements or disclosures required under the federal securities laws or other applicable laws or otherwise pursuant to the legal process or (b) making any statements, disclosures, claims, assertions or allegations that are reasonably required in connection with any litigation or proceeding between or among said Member and any other Members, the Company, the Manager or any Affiliate of any of the foregoing, and/or otherwise related to the Property; provided, that, as to subsection (a) above, to the extent not otherwise legally prohibited from so doing, such Member shall provide written notice to the other Member at least two (2) business days prior to making any such statement or disclosure required under the federal securities laws or other applicable laws that would otherwise be prohibited by the provisions of this Section 17.13, and reasonably consider any comments of such other Members. The Members agree and acknowledge that this non-disparagement provision is a material term of this Agreement, the absence of which would have resulted in the Members refusing to enter into this Agreement.

17.14. Representation by Munsch Hardt. The Members consent to the retention of Munsch Hardt Kopf & Harr, P.C. ("Munsch Hardt") to represent the Company, the KBC Member and the Manager. In representing the Company, the KBC Member and the Manager, Munsch Hardt will follow the directions of the Manager and the KBC Member and will not be responsible for looking out for the interests of the other Members or notifying the other Members of any decisions that might negatively affect their interests. The Members other than the KBC Member (each, a "Non-KBC Member") further acknowledge that they are represented by separate counsel with regard to their individual membership interests in the Company or, if not, have chosen to forego such representation without reliance on Munsch Hardt. Each Non-KBC Member represents, warrants and covenants that, in the event of litigation or arbitration between the Manager, the KBC Member and/or the Company, on the one hand, and a Non-KBC Member on the other, that such Non-KBC Member will not seek the removal of Munsch Hardt as counsel to the Manager, the KBC Member and/or the Company for any reason, including purported conflict of interest or attorney-client relationship allegedly existing between Munsch Hardt and such Non-KBC Member.

[Signature page follows.]

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

KBC ADVISORS – ILLINOIS, LLC,
a Washington limited liability company

By: 

Name: Kelley John Hanson

Title: Manager

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

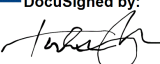
DocuSigned by:

John Hanson

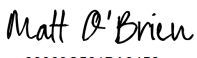
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Kelley John Hanson

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

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Todd Meldahl

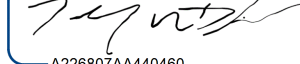
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

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Matthew O'Brien

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

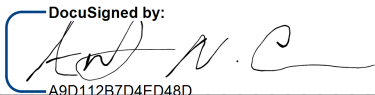


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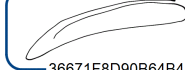
Zachary Bode

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

Arcivescovado, LLC
a Texas limited liability company

By:  DocuSigned by:
A9D112B7D4ED48D
Name: Anthony Creme
Title: Managing Manager / Authorized Signer

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

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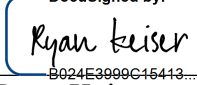
Robert Mills

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

NHL Equities, LLC
a Texas limited liability company

By:  DocuSigned by:
00C1A62563A6434...
Name: Nathan Lawrence
Title: Managing Manager / Authorized Signer

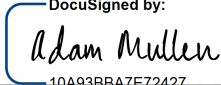
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

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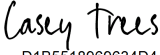
Ryan Keiser

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

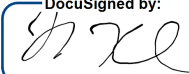
Hayston Investments LLC,
a Delaware limited liability company

DocuSigned by:

By: 10A93BBA7E72427...
Name: Adam Mullen
Title: Authorized Signer

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

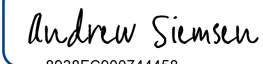
DocuSigned by:

D1B5518969634D4...
Casey Trees

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

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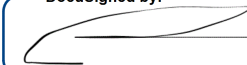
Michael Kimmel

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

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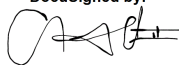
Andrew Siemsen

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

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John C. Tuck

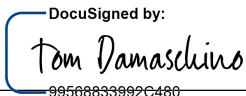
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

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Charles Samuel Fulk, II

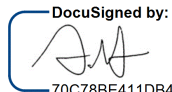
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

The Damaschino Revocable Trust,
dated October 15, 2018

By:  DocuSigned by:
99568833992C480...
Name: Thomas A. Damaschino
Title: Authorized Signer / Trustee

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

The Higgins Family Trust,
dated March 11, 2005

DocuSigned by:


By: _____

70C78BE411DB4A8...

Name: Jon S. Higgins

Title: Authorized Signer / Trustee

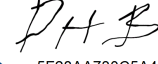
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

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Ryan Bos

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

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Peter H. Billipp

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

MacMillan Revocable Living Trust,
dated Dec 8, 2017 as restated Nov 17, 2022

By:  Colin MacMillan

DocuSigned by: 6EA7146AF8BF44E...
Name: Colin MacMillan

Title: Authorized Signatory

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

Gabriel Temkin

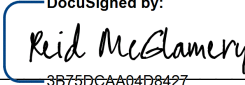
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Gabriel Temkin

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

Golden Crescent Corporation

DocuSigned by:

By: 
3B75DCAA04D8427...
Name: Reid McGlamery
Title: Authorized Signer

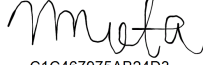
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

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Brandon Waters

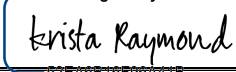
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

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Mandy Mota

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

KAR Texas Properties, LLC

By:  DocuSigned by: 32EAC8B10F90A41B...

Name: Krista Raymond

Title: Authorized Signatory

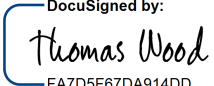
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

Jonathan Postweiler

Jonathan H. Postweiler

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

Latham James, LLC,
a Texas limited liability company

DocuSigned by:

By: FA7D5E67DA914DD
Name: Thomas Wood
Title: Manager / Authorized Signer

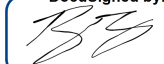
IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

RYost

271BF2C13C74467...
Rosanna Yost

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

166303B28EFD4CE...
Ryan O'Leary

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

Paul Roeser

44707E715C20435...

Paul Roeser

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DDS2 LLC

DocuSigned by:

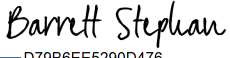
Jeff Fischer

By: 094B0CA78BD1471...

Name: Jeff Fischer

Title: Authorized Signatory

IN WITNESS WHEREOF, the Members have executed this Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC to be effective as of the Effective Date.

DocuSigned by:

D79B6EE5290D476...

Barrett W. Stephan

EXHIBIT A**Members, Addresses, Initial Capital Contributions and Contribution Percentages**

Members and Addresses	Initial Capital Contributions	Contribution Percentages
KBC Advisors – Illinois, LLC c/o KBC Advisors 330 W. Chestnut St., 2nd Floor Hinsdale, IL 60521 Attention: Ryan O’Leary Email: Ryan.Oleary@kbcadvisors.com	\$0.00	0.00%
DDS2 LLC c/o Jeff Fisher 416 S. Washington Street Elmhurst, IL 60126 Email: jeff.fischer@kbcadvisors.com	\$110,000.00	8.035%
Kelley John Hanson 5628 Airport Way S., Suite 238 Seattle, WA 98108 Email: john.hanson@kbcadvisors.com	\$110,000.00	8.035%
Matthew O’Brien 5628 Airport Way S., Suite 238 Seattle, WA 98102 Email: matt.obrien@kbcadvisors.com	\$110,000.00	8.035%
Ryan O’Leary 282 Adelia Street Elmhurst, IL 60126 Email: ryan.oleary@kbcadvisors.com	\$110,000.00	8.035%
Todd Meldahl 5628 Airport Way S., Suite 238 Seattle, WA 98108 Email: todd.meldahl@kbcadvisors.com	\$110,000.00	8.035%
Zachary Bode 5628 Airport Way S., Suite 238 Seattle, WA 98108 Email: zachary.bode@kbcadvisors.com	\$110,000.00	8.035%
NHL Equities, LLC c/o Nathan Lawrence 4133 Bryn Mawr Drive Dallas, TX 75225 Email: nathan.lawrence@kbcadvisors.com	\$75,000.00	5.478%

Andrew Siemsen 19 Eckert Farm Road, Saddle River, NJ 07458 Email: andrew.siemsen@kbcadvisors.com	\$50,000.00	3.652%
Michael Kimmel 27 Park Lane Fair Haven, NJ 07704 Email: michael.kimmel@kbcadvisors.com	\$50,000.00	3.652%
Robert Mills 9450 SW Gemini Dr, PMB 46239, Beaverton, OR 97008 Email: bo.mills@kbcadvisors.com	\$50,000.00	3.652%
Ryan Keiser 4028 Windsor Avenue Dallas, TX 75205 Email: ryan.keiser@kbcadvisors.com	\$50,000.00	3.6524%
Gabriel Temkin 39 Crosby Street 3W New York, NY 10013 Email: gabe.temkin@kbcadvisors.com	\$40,000.00	2.922%
KAR Texas Properties, LLC c/o Krista Raymond 7488 Creekmere Drive Frisco, TX 75035 Email: krista.raymond@kbcadvisors.com	\$35,000.00	2.557%
Arcivescovado, LLC c/o Anthony Creme 9915 Avalon Creek Court Dallas, TX 75230 Email: tonycreme@gmail.com	\$25,000.00	1.826%
Brandon Waters 21 S. Gibbons Ave. Arlington Heights, IL 60004 Email: brandon.waters@kbcadvisors.com	\$25,000.00	1.826%
Casey Trees 5628 Airport Way S., Suite 238 Seattle, WA 98102 Email: casey.trees@kbcadvisors.com	\$25,000.00	1.826%
Charles Samuel Fulk, II ("Bo Fulk") 5304 Cherry Blossom Trail	\$25,000.00	1.826%

Nashville, TN 37215 Email: bo.fulk@kbcadvisors.com		
Golden Crescent Corporation c/o Reid McGlamery 5525 Oakdale Avenue, Suite 155 Woodland Hills, CA 91364 Email: reid.mcglamery@kbcadvisors.com	\$25,000.00	1.826%
Hayston Investments LLC c/o Adam Mullen 618 Woodleave Rd. Bryan Mawr, PA 19010 Email: adam.mullen@kbcadvisors.com	\$25,000.00	1.826%
Jon S. Higgins and Wendy A. Higgins, Trustees, The Higgins Family Trust, Dated March 11, 2005 c/o Jon S. Higgins 107 Linhares Lane Alamo, CA 94507 Email: sam.higgins@kbcadvisors.com	\$25,000.00	1.826%
MacMillan Revocable Living Trust, dated Dec 8, 2017 as restated Nov 17, 2022 c/o Colin MacMillan 25001 Del Monte St. Laguna Hills, CA 92653 Email: colin.macmillan@kbcadvisors.com	\$25,000.00	1.826%
Mandy Mota 5628 Airport Way S., Suite 238 Seattle, WA 98108 Email: mandy.mota@kbcadvisors.com	\$25,000.00	1.826%
Ryan Bos 4185 Via Solano, Palos Verdes Estates, CA 90274 Email: ryan.bos@kbcadvisors.com	\$25,000.00	1.826%
Thomas A. Damaschino and/or Jamie L. Damaschino, Trustees, The Damaschino Revocable Trust, Dated October 15, 2018 c/o Thomas A. Damaschino 2262 Roundhill Drive Alamo, CA 94507 Email: tom.damaschino@kbcadvisors.com	\$25,000.00	1.826%

Paul Roeser 173 Mount Vernon Drive Decatur, GA 30030 Email: paul.roeser@kbcadvisors.com	\$20,000.00	1.461%
John C. Tuck ("Chad") 1606A North Observatory Drive Nashville, TN 37215 Email: chad.tuck@kbcadvisors.com	\$15,000.00	1.096%
Peter H. Billipp 3601 Plumb St. Houston, TX 77005 Email: peter.billipp@kbcadvisors.com	\$15,000.00	1.096%
Latham James, LLC c/o Thomas Wood 4509 Edmondson Ave. Dallas, TX 75205 Email: thomas.c.wood1@gmail.com	\$10,000.00	0.730%
Rosanna Yost 5628 Airport Way S., Suite 238 Seattle, WA 98108 Email: rose.yost@kbcadvisors.com	\$10,000.00	0.730%
Jonathan H. Postweiler 1530 E. Marcus Ct. Park Ridge, IL 60068 Email: jonathan.postweiler@kbcadvisors.com	\$9,021.00	0.659%
Barrett W. Stephan 300 N. Canal St. Unit 3501 Chicago, IL 60606	\$5,000.00	0.365%
TOTAL	\$1,369,021.00	100.000%

EXHIBIT B
ALLOCATIONS OF PROFITS AND LOSSES
AND
OTHER TAX MATTERS

This Exhibit B (the “Exhibit”) sets forth certain provisions addressing the allocation of Company profits and losses and other tax matters, as well as relevant definitions, for purposes of the Limited Liability Company Agreement of Batavia Logistics Center 1401, LLC (the “Agreement”).

ARTICLE ONE

DEFINITIONS

1.1 Certain Definitions. All capitalized terms used herein shall have the meanings assigned to them in the Agreement or as follows:

“Adjusted Capital Account” means the balance in each Member’s Capital Account as of the end of each Fiscal Year, after making the following adjustments: (i) increase the Capital Account by any amounts that a Member is unconditionally obligated to restore or is deemed obligated to restore pursuant to the penultimate sentences of Regulations Sections 1.704-2(g)(1) and 1.704-2(i)(5), and (ii) decrease the Capital Account by the amount of any items described in Regulations Sections 1.704-1(b)(2)(ii)(d)(4), (5) and (6). The foregoing definition is intended to comply with Regulations § 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

“Adjusted Capital Account Deficit” means, with respect to any Member, the deficit balance, if any, in that Member’s Adjusted Capital Account.

“Adjustment Period” means any period of time that begins on the effective date of the initial filing of the initial Certificate of Formation of the Company with the Secretary of State of the State of Texas (in the case of the first Adjustment Period) or the day following the end of the immediately preceding Adjustment Period (with respect to each subsequent Adjustment Period) and ends on the first to occur of: (a) the last day of a Fiscal Year, (b) the day immediately preceding the date of the “liquidation” of a Member’s interest in the Company (within the meaning of Section 1.704-1(b)(2)(ii)(g) of the Regulations), or (c) the date on which the Company is terminated under Section 16 of the Agreement.

“Capital Account” means the account established for each Member pursuant to Section 2.1 of this Exhibit.

“Code” means the Internal Revenue Code of 1986 and any successor statute, as amended from time to time.

“Company Minimum Gain” has the meaning set forth in Section 1.704-2(b)(2) of the Regulations and the amount of Company Minimum Gain, as well as any net increase or decrease in Company Minimum Gain, for an Adjustment Period shall be determined in accordance with the rules of Section 1.704-2(d) of the Regulations.

“Depreciation” means, for each Fiscal Year, an amount equal to the depreciation, amortization, or other cost recovery deduction (including depletion) allowable for U.S. federal income tax purposes with respect to an asset for such Fiscal Year, except that: (a) with respect to any asset the Gross Asset Value of which differs from its adjusted tax basis for U.S. federal income tax purposes at the beginning of such Fiscal Year and which difference is being eliminated by use of the “remedial method” as defined by Regulations Section 1.704-3(d), Depreciation for such Fiscal Year shall be the amount of book basis recovered for such Fiscal Year under the rules prescribed by Regulations Section 1.704-3(d)(2); and (b) with respect to any other asset the Gross Asset Value of which differs from its adjusted tax basis for U.S. federal income tax purposes at the beginning of such Fiscal Year, Depreciation shall be an amount which bears the same ratio to such beginning Gross Asset Value as the U.S. federal income tax depreciation, amortization or other cost recovery deduction for such Fiscal Year bears to such beginning adjusted tax basis; provided, however, that in the case of clause (b) above, if the adjusted tax basis for U.S. federal income tax purposes of an asset at the beginning of such Fiscal Year is zero, Depreciation shall be determined with reference to such beginning Gross Asset Value using any reasonable method selected by the Manager.

“Fiscal Year” means the period commencing on January 1 of each year and ending on December 31 of such year.

“Gross Asset Value” means, with respect to any asset, the asset’s adjusted basis for federal income tax purposes, except as set forth below:

(i) The initial Gross Asset Value of any asset contributed by a Member to the Company shall be the gross fair market value of the asset on the date of determination, as determined by the contributing Member and the Company.

(ii) The Gross Asset Values of all Company assets shall be adjusted to equal their gross fair market values, as determined by the Manager, as of the following times: (A) the acquisition of an additional interest in the Company by any new or existing Member in exchange for more than a *de minimis* contribution of money or other property to the capital of the Company (including as directed by Regulations Section 1.704-1(b)(2)(iv)(s)); (B) the distribution by the Company to the Member of more than a *de minimis* amount of property as consideration for an interest in the Company; (C) the grant of an interest in the Company (other than a *de minimis* interest) as consideration for the provision of services to or for the benefit of the Company by an existing Member acting in a Member capacity, or by a new Member acting in a Member capacity or in anticipation of becoming a Member; (D) the liquidation of the Company within the meaning of Regulations Section 1.704-1(b)(2)(ii)(g); (E) the issuance of a noncompensatory option to acquire an interest in the Company that is more than *de minimis*; or (F) the acquisition of an interest in the Company by any new or existing Member upon the exercise of a noncompensatory option or warrant in accordance with Regulations Section 1.704-1(b)(2)(iv)(s).

(iii) The Gross Asset Value of any Company asset distributed to any Member shall be the gross fair market value of such asset on the date of distribution.

(iv) The Gross Asset Values of Company assets shall be increased (or decreased) to reflect any adjustment to the adjusted basis of such assets pursuant to Code Section 732(d), Code Section 734(b) or Code Section 743(b), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Section 1.704-1(b)(2)(iv)(m) of the Regulations and Section 3.2(g) of this Exhibit; provided, however, that Gross Asset Values shall not be adjusted pursuant to this subparagraph (iv) to the extent the Manager determines that an adjustment pursuant to subparagraph (ii) above is necessary or appropriate in connection with a transaction that would otherwise result in an adjustment pursuant to this subparagraph (iv).

If the Gross Asset Value of an asset has been determined or adjusted pursuant to clauses (i), (ii) or (iv) above, such Gross Asset Value shall thereafter be adjusted by the Depreciation taken into account with respect to such asset for purposes of computing Profits and Losses.

“Gross Income” means, for each Adjustment Period, an amount equal to the Company’s gross income as determined for federal income tax purposes for the Adjustment Period but computed with the adjustments in paragraphs (a) through (f) of the definition of “Profits” and “Losses” in this Section 1.1.

“Member Nonrecourse Debt” means any nonrecourse debt of the Company for which any Member bears the economic risk of loss as determined under Section 1.704-2(b)(4) and 1.752-2 of the Regulations.

“Member Nonrecourse Debt Minimum Gain” means the minimum gain attributable to Member Nonrecourse Debt as determined under Section 1.704-2(i)(3) of the Regulations.

“Member Nonrecourse Deductions” means any loss, deduction, or Code Section 705(a)(2)(B) expenditure, or item thereof, that is attributable to a Member Nonrecourse Debt as determined under Section 1.704-2(i)(2) of the Regulations.

“Nonrecourse Deductions” means any loss, deduction, or Code Section 705(a)(2)(B) expenditure, or item thereof, that is attributable to nonrecourse liabilities of the Company as defined in Section 1.752-1(a)(2) of the Regulations.

“Partially Adjusted Capital Account” means, with respect to any Member as of the close of business on the last day of any Adjustment Period, the Capital Account of such Member as of the beginning of such Adjustment Period, after giving effect to all allocations of items of income, gain, loss, or deduction not included in Profits and Losses and all Capital Contributions and distributions during such period but before giving effect to any allocations of Profits and Losses for such period pursuant to Section 3.1 of this Exhibit, increased by (a) such Member’s share of Company Minimum Gain, as determined pursuant to Regulations Section 1.704-2(d), as of the end of such Adjustment Period and (b) such Member’s share of Member Nonrecourse Debt Minimum Gain, as determined pursuant to Regulations Section 1.704-2(i), as of the end of such Adjustment Period.

“Profits” and “Losses” mean, for each Fiscal Year or other period, an amount equal to the Company’s taxable income or loss for such year or period, determined in accordance with Section 703(a) of the Code (for this purpose, all items of income, gain, loss, or deduction required

to be stated separately pursuant to Section 703(a)(1) of the Code shall be included in taxable income or loss), but with the following adjustments for such Fiscal Year or other period:

(a) Any income of the Company that is exempt from federal income tax as described in Code Section 705(a)(1)(B) and not otherwise taken into account in computing Profits and Losses pursuant to this definition of “Profits” and “Losses” shall be added to such taxable income or loss;

(b) Any expenditures of the Company described in Code Section 705(a)(2)(B) or treated as Code Section 705(a)(2)(B) expenditures pursuant to Regulations Section 1.704-1(b)(2)(iv)(i) and not otherwise taken into account in computing Profits and Losses pursuant to this definition of “Profits” and “Losses” shall be subtracted from such taxable income or loss;

(c) If the Gross Asset Value of any Company asset is adjusted pursuant to this Exhibit, the amount of such adjustment shall be taken into account as gain or loss from the disposition of such asset for purposes of computing Profits or Losses;

(d) Gain or loss resulting from any disposition of property with respect to which gain or loss is recognized for federal income tax purposes shall be computed by reference to the Gross Asset Value of the property disposed of, notwithstanding that the adjusted tax basis of the property differs from the Gross Asset Value of the property;

(e) In lieu of the deduction for depreciation, cost recovery, or amortization taken into account in computing such taxable income or loss, there shall be taken into account Depreciation for such Fiscal Year or other period; and

(f) Notwithstanding any other provision of this Exhibit, any items that are specially allocated pursuant to Section 3.2 of this Exhibit shall not be taken into account as taxable income or loss for purposes of computing Profits and Losses.

“Regulations” means temporary and final Income Tax Regulations promulgated under the Code, as amended and superseded from time to time.

“Target Capital Account” means, with respect to any Member as of the close of business on the last day of any Adjustment Period, an amount (which may be either a positive or a deficit balance) equal to the amount such Member would receive as a distribution if all assets of the Company as of such date were sold for cash equal to the Gross Asset Value of such assets, all the Company liabilities were satisfied to the extent required by their terms, and the net proceeds were distributed pursuant to Section 16.2(a)(2) of the Agreement.

ARTICLE TWO

CAPITAL ACCOUNTS

2.1 Capital Accounts. The Company shall establish and maintain a separate Capital Account for each Member. Each Capital Account shall be maintained in accordance with the following provisions:

(a) Each Member's Capital Account shall be increased by (i) the amount of cash and the Gross Asset Value of property contributed by such Member to the Company (net of liabilities secured by the contributed property that the Company is considered to assume or take subject to under Section 752 of the Code), (ii) such Member's distributive share of Profits and (iii) any items in the nature of income or gain that are specially allocated to such Member.

(b) Each Member's Capital Account shall be decreased by (i) the amount of cash and the Gross Asset Value of any other property distributed to such Member pursuant to any provision of the Agreement or this Exhibit (net of liabilities secured by the distributed property that the Member is considered to assume or take subject to under Section 752 of the Code), (ii) such Member's distributive share of Losses and (iii) items of loss and deduction that are specially allocated to such Member.

(c) Each Member shall have a single Capital Account that reflects all of its interests in Company, regardless of the class of interest owned by such Member and regardless of the time or manner in which such interests were acquired.

(d) If all or a portion of an interest in the Company is transferred in accordance with the terms of the Agreement, the transferee shall succeed to the Capital Account of the transferor to the extent the Capital Account relates to the transferred interest.

The foregoing provisions and the other provisions of the Agreement and this Exhibit relating to the maintenance of Capital Accounts are intended to comply with Section 1.704-1(b)(2)(iv) of the Regulations and shall be interpreted and applied in a manner consistent with such Regulations.

2.2 Tax Elections. The Manager is authorized, in its reasonable discretion, to make all elections permitted or required of the Company under Regulations Section 1.704-1, Code Section 754 and any other provisions of the Code.

ARTICLE THREE

ALLOCATIONS

3.1 Allocations of Profit and Loss. Profits and Losses shall be allocated among the Members (after giving effect to the special allocations contained in Section 3.2) so as to reduce the differences between their respective Partially Adjusted Capital Accounts and their Target Capital Accounts for the period under consideration, with such allocations being made between the Members in proportion to such differences. To the extent possible, each Member shall be allocated a pro rata share of all Company items allocated.

(a) If the Company has Profits for any Fiscal Year (determined prior to giving effect to this Section 3.1(a)), any Member whose Partially Adjusted Capital Account is greater than its Target Capital Account shall to the extent determined necessary or desirable by the Manager be specially allocated items of expense or loss for such Fiscal Year equal to the difference between its Partially Adjusted Capital Account and Target Capital Account. If the Company has insufficient items of expense or loss for such Fiscal Year to

satisfy the previous sentence with respect to all such Members and the respective differences between their Partially Adjusted Capital Accounts and Target Accounts, the available items of expense or loss shall be divided among such Members in proportion to such differences.

(b) If the Company has Losses for any Fiscal Year (determined prior to giving effect to this Section 3.1(b)), any Member whose Partially Adjusted Capital Account is less than its Target Capital Account shall to the extent determined necessary or desirable by the Manager be specially allocated items of Company gain or income for such Fiscal Year equal to the difference between its Partially Adjusted Capital Account and Target Capital Account. If the Company has insufficient items of income or gain for such Fiscal Year to satisfy the previous sentence with respect to all such Members and the respective differences between their Partially Adjusted Capital Accounts and Target Accounts, the available items of income or gain shall be divided among such Members in proportion to such differences.

3.2 Special Allocations. For each Fiscal Year, the following special allocations shall be made in the following order and priority:

(a) Company Minimum Gain Chargeback. Notwithstanding any other provision of this Agreement to the contrary, if in any Adjustment Period there is a net decrease in Company Minimum Gain, then each Member will first be allocated items of Gross Income for the Adjustment Period (and, if necessary, subsequent Adjustment Periods) in an amount equal to the portion of such Member's share of the net decrease in Company Minimum Gain, determined in accordance with the provisions of Section 1.704-2(g) of the Regulations, that is attributable to the disposition of Company property subject to one or more nonrecourse liabilities of the Company that are not Member Nonrecourse Debts; provided, however, if there is insufficient Gross Income in an Adjustment Period to make the above allocation for all Members for the Adjustment Period, the Gross Income will be allocated among the Members in proportion to the respective amounts they would have been allocated had there been an unlimited amount of Gross Income for the Adjustment Period.

(b) Minimum Gain Chargeback for Member Nonrecourse Debt. Notwithstanding any other provision of this Exhibit to the contrary other than Section 3.2(a), if in any Adjustment Period there is a net decrease in Member Nonrecourse Debt Minimum Gain, then each Member will first be allocated items of Gross Income for the Adjustment Period (and, if necessary, subsequent Adjustment Periods) in an amount equal to the portion of such Member's share of the net decrease in the Member Nonrecourse Debt Minimum Gain during the Adjustment Period (as determined in accordance with Section 1.704-2(i) of the Regulations) attributable to the disposition of Company property subject to one or more Member Nonrecourse Debts; provided, however, if there is insufficient Gross Income in an Adjustment Period to make the above allocation for all Members for the year, the Gross Income will be allocated among the Members in proportion to the respective amounts they would have been allocated had there been an unlimited amount of Gross Income for the Adjustment Period.

(c) Qualified Income Offset. If a Member unexpectedly receives any adjustment, allocation or distribution described in Sections 1.704-1(b)(2)(ii)(d)(4), 1.704-1(b)(2)(ii)(d)(5) or 1.704-1(b)(2)(ii)(d)(6) of the Regulations, items of Company income and gain shall be specially allocated to each such Member in an amount and manner sufficient to eliminate, to the extent required by the Regulations, the deficit balance in each such Member's Adjusted Capital Account as quickly as possible; provided, that an allocation pursuant to this Section 3.2(c) of the Exhibit shall be made only if and to the extent that such Member would have a deficit balance in its Adjusted Capital Account after all other allocations provided for in Article 3 of the Exhibit have been tentatively made as if this Section 3.2(c) were not in the Exhibit.

(d) Gross Income Allocation. If any Member has an Adjusted Capital Account Deficit at the end of any Fiscal Year, each such Member shall be specially allocated items of Company income and gain in the amount of such excess as quickly as possible, provided that an allocation pursuant to this Section 3.2(d) shall be made only if and to the extent that such Member would have a deficit Capital Account in excess of such sum after all other allocations provided for in Article 3 have been made as if Section 3.2(c) above and this Section 3.2(d) were not in the Exhibit.

(e) Nonrecourse Deductions. Nonrecourse Deductions for any Adjustment Period shall be allocated to the Members pro rata in proportion to their respective Percentage Interests. If the Manager determines in its good faith discretion that the Company Nonrecourse Deductions must be allocated in a different ratio to satisfy the safe harbor requirements of the Regulations promulgated under Section 704(b) of the Code, the Manager is authorized, upon notice to the Members, to revise the prescribed ratio to the numerically closest ratio that does satisfy such requirements.

(f) Member Nonrecourse Deductions. Member Nonrecourse Deductions for any Adjustment Period or other period will be allocated to the Member who bears the economic risk of loss with respect to the Member Nonrecourse Debt to which such Member Nonrecourse Deductions are attributable.

(g) Basis Adjustments. To the extent an adjustment to the adjusted tax basis of any Company asset pursuant to Code Sections 734(b) or 743(b) is required, pursuant to Section 1.704-1(b)(2)(iv)(m) of the Regulations, to be taken into account in determining Capital Accounts, the amount of such adjustment to the Capital Accounts shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases such basis), and such gain or loss shall be specially allocated to the Members in a manner consistent with the manner in which their Capital Accounts are required to be adjusted pursuant to such Section of the Regulations.

(h) Reallocation. Subject to Section 3.3, to the extent Losses allocated to a Member would cause such Member to have an Adjusted Capital Account Deficit at the end of any Fiscal Year, the Losses will be reallocated to the other Members with positive Adjusted Capital Account balances in accordance with and to the extent of such positive Adjusted Capital Account balances. If any Member receives an allocation of Losses in accordance with this Section, such Member shall be allocated Profits in subsequent Fiscal

Years necessary to reverse the effect of such allocation of Losses. Such allocation of Profits (if any) shall be made after any allocations under this Section 3.2 but prior to any other allocations of Profits under Section 3.1.

(i) Depreciation Recapture. In the event there is any recapture of Depreciation or investment tax credit, the allocation of gain or income attributable to such recapture shall be shared by the Members in the same proportion as the deduction for such Depreciation or investment tax credit was shared.

(j) Interest in Company. Notwithstanding any other provision of this Agreement, no allocation of Profit or Loss or item of Profit or Loss will be made to a Member if the allocation would not have “economic effect” under Regulations Section 1.704-1(b)(2)(ii) or otherwise would not be in accordance with the Member’s interest in the Partnership within the meaning of Regulations Section 1.704-1(b)(3) or 1.704-1(b)(4)(iv). The Manager will have the authority to reallocate any item in accordance with this Section 3.2(j).

(k) Curative Allocations. The allocations set forth in Sections 3.2(a) through (i) hereof (the “Regulatory Allocations”) are intended to comply with certain requirements of Section 1.704-1(b) of the Regulations. It is the intent of the Members that, to the extent possible, all Regulatory Allocations shall be offset either with other Regulatory Allocations or with special allocations of other items of Company income, gain, loss or deduction pursuant to this Section. Accordingly, the Manager is hereby authorized and directed to make such offsetting allocations of Company income, gain, loss or deduction in any manner that the Manager deems appropriate so that, after such offsetting allocations are made, each Member’s Capital Account balance will be, to the extent possible, equal to the Capital Account balance such Member would have had if the Regulatory Allocations were not a part of this Exhibit and all Company items had been allocated to the Members solely pursuant to Section 3.1 hereof.

3.3 Compliance with Code. The provisions of the Agreement and this Exhibit relating to the allocation of Profits, Losses and other items for federal income tax purposes are intended to comply with Regulations Sections 1.704-1(b) and 1.704-2, and shall be interpreted in a manner consistent therewith.

3.4 Section 704(c). In accordance with Section 704(c) of the Code and the Regulations thereunder, income, gain, loss, and deduction with respect to any property contributed to the capital of the Company shall, solely for tax purposes, be allocated among the Members so as to take account of any variation between the adjusted basis of such property to the Company for federal income tax purposes and the initial Gross Asset Value of such property. If the Gross Asset Value of any Company asset is adjusted pursuant to subparagraph (ii) of the definition of Gross Asset Value set forth in this Exhibit, subsequent allocations of income, gain, loss, and deduction with respect to such asset shall take account of any variation between the adjusted basis of such asset for federal income tax purposes and the Gross Asset Value of such asset in the same manner as such variations are taken into account under Section 704(c) of the Code and the Regulations thereunder with respect to property contributed to the Company. Any elections or other decisions relating to such allocation shall be made by the Manager in any manner that reasonably reflects

the purpose and intention of the Agreement and this Exhibit. Allocations pursuant to this Section 3.4 of the Exhibit are solely for purposes of federal, state, and local taxes and shall not affect or be taken into account in computing any Member's Capital Account or share of Profits, Losses, other items, or distributions pursuant to the Agreement or this Exhibit.

3.5 Other Allocations. The following rules will apply to the calculation and allocation of Profits, Losses and other items:

(a) For purposes of determining the Profits, Losses, or any other item allocable to any period (including periods before and after the admission of a new Member), Profits, Losses, and any such other item shall be determined on a daily, monthly, or other basis, as determined and allocated by the Manager using any permissible method under Section 706 of the Code and the Regulations thereunder.

(b) The Members are aware of the federal income tax consequences of the allocations made by this Exhibit and hereby agree to be bound by the provisions of this Exhibit in reporting their shares of Company income and loss for federal income tax purposes.

(c) The Members agree that their Percentage Interests represent their interests in Company profits for purposes of allocating excess nonrecourse liabilities pursuant to Section 1.752-3(a)(3) of the Regulations.

(d) Subject to the provisions of Section 704(c) of the Code and the Regulations thereunder, for federal income tax purposes, every item of income, gain, loss, and deduction shall be allocated among the Members in the same manner as each correlative item of income, gain, loss and deduction was allocated among the Members for book purposes pursuant to Sections 3.1 and 3.2 of this Exhibit.

3.6 Special Allocation in Disposition Year and Subsequent Years. Notwithstanding Sections 3.1 and 3.2 (but subject to Section 3.2(h)), in connection with the dissolution of the Company, to the maximum extent permitted by applicable law, Profits (or items thereof), Losses (or items thereof), and Gross Income (or items thereof) shall be allocated among the Members in such a manner that the Capital Account balance of each Member shall be, the same amount as the liquidation proceeds to be distributed to such Members pursuant to Section 16.2 of the Agreement.